

ened political rhetoric that has now helped the Opposition connect the NRC with CAA. Since its inception, many in the BJP have projected the CAA as a tool of Hindutva consolidation while touting the NRC as a weapon against illegal immigrants. So, post-CAA, only the Muslim illegal immigrants will have no legal protection. The BJP's electoral intent, coupled with deliberate and, at times, politically mischievous statements also gave credence to claims that the CAA and NRC are intertwined, and that the party intends to use both against Muslims. Shah's famous statement had fired the first warning shot: "Understand the chronology; first, we will bring CAA and, after that, NRC."

The Opposition also stands to politically gain from such narratives. Many in the TMC feel the BJP has handed them a weapon to divert attention from the Sandeshkhali incident, where the party is accused of being complicit in crimes against women and violence in the area. "Ahead of the 2021 polls, Didi weaponised the CAA issue to consolidate the Muslim votes. It worked, and we won. She is going to do the same in 2024," says a TMC leader. Muslims account for 27 per cent of Bengal's population with an electoral impact in 130 of the 294 assembly constituencies.

THE CHIEF MINISTERS OF WEST BENGAL, TAMIL NADU AND KERALA HAVE ALREADY SAID THAT THE STATES WILL NOT IMPLEMENT THE CAA. BUT THEY MAY HAVE LITTLE ROLE IN THE IMPLEMENTATION OF THE LAW ANYWAY

WHY ASSAM IS PROTESTING

In Assam, where illegal immigration from Bangladesh is a politically sensitive issue, protests have erupted over CAA as it legalises the Hindu illegal immigrants from the neighbouring country. The people of Assam and the Northeast are apprehensive of Bangla-speaking people outnumbering them in their homeland, impinging on their culture, resources and political rights. Besides, the CAA, which has December 31, 2014, as the cut-off date for giving citizenship, violates the Assam Accord, which has 1971 as the cut-off year for detecting illegal immigrants.

Yet, the current protests pale against the intensity of the 2019 agitation when five young men lost their lives in police firing. On March 12, the United Opposition Forum Assam—a 16-party coalition—called for a day-long strike. It evoked no response from the public. Even in the 2021 assembly election, the opposition against CAA had little impact, with the BJP returning to power with comfortable numbers. It's unlikely to have any impact in the 2024 Lok Sabha polls either. Indeed, the Northeast may be immune to the CAA. The law anyway exempts Arunachal Pradesh, Nagaland, Manipur, Mizoram, almost all parts of Tripura and Meghalaya and the tribal belts of Assam from its purview.

Besides, the number of people applying for citizenship may not be too high in Assam. There is talk that many of those left out of the NRC will apply through the CAA, but that is a double-edged sword, for they'll have to declare themselves foreigners, something no one in the list has admitted. Even five years after the publication of the Assam NRC, not a single individual has faced punitive action or been debarred from citizenship. Also, those excluded from the NRC do not automatically become foreigners. The NRC list will become official only when the Registrar General of India (RGI) notifies it. And even if the RGI does so, those excluded from the NRC will be first referred to the Foreigner's Tribunal (FT), which will have to declare them illegal foreigners. Following that, they have the option of appealing in the higher courts. Incidentally, sources reveal, only 30 per cent of those 'excluded' in the Assam NRC were Muslims.

The West Bengal, Tamil Nadu and Kerala CMs have already said the states will not implement the CAA, but they may have little role in that. According to the Constitution, matters related to citizenship are the domain of the central government. The final decision on applications will be taken by the empowered committee and scrutiny of applications will be done by district-level committees. All committees will have officials from the central government as members, state representatives will only be invitees.

THE REFUGEE CONUNDRUM

It's still unclear how many immigrants will benefit from the CAA. As per a joint parliamentary committee report from January 2019, the Intelligence Bureau (IB) estimates that 31,313 individuals—25,447 Hindus, 5,807 Sikhs, 55 Christians, two Buddhists and two Parsis—living in India on long-term visas would be the immediate beneficiaries. Then there are the 80,000 or so refugees from West Pakistan, largely Hindus, who have been living in Kashmir since Independence without citizenship rights. The CAA will legalise them.

The opponents of CAA question why the government has not extended the same courtesy to the Rohingya Muslims from Myanmar or Tamil Hindus from Sri Lanka. To be fair to the BJP government, past dispensations, too, have offered citizenship to only select groups coming from particular